

HCJDA 38
JUDGMENT SHEET
LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

ICA No.186259/2018

(Mian Imdad Sarwar Vs Ex. Officio Justice of Peace etc.)

ICA No.186261/2018

(Mian Imdad Sarwar Vs Ex. Officio Justice of Peace etc.)

J U D G M E N T

Date of hearing: **22.01.2019**

Appellant: Miss Aqsa, Advocate.

Respondent No.2: Mrs. Azra Israr, Assistant Advocate General.

Respondent No.3: Mr. Ahsan Javed, Advocate.

Farooq Haider, J. This judgment shall dispose of Intra Court Appeals No.186259/2018 and 186261/2018 involving common questions of law and facts.

2. Above noted two Intra Court Appeals under Section 3 of The Law Reforms Ordinance, 1972 have been filed by Mian Imdad Sarwar (hereinafter referred as appellant) against consolidated order dated 21.02.2018 passed by the learned Single Judge-in-Chamber, whereby Writ Petition No.12826/2016 and 12827/2016, filed by Muhammad Yaqoob and Muhammad Shoaib Yaqoob, respectively, were accepted and the orders dated 16.04.2016, passed on the applications filed under Sections 22-A & B Cr.P.C. by the present appellant, were set aside.

3. Necessary facts leading to the filing of instant appeals are that the appellant moved two applications under Sections 22-A & 22-B Cr.P.C. before the learned Ex-Officio Justice of the Peace, Lahore seeking direction to the SHO concerned for registration of

F.I.R against Muhammad Yaqoob, Muhammad Shoaib Yaqoob and others, who vide orders dated 16.04.2016 disposed of the same directing the appellant to approach the SHO concerned, who was further directed to record the version of the appellant and proceed further in accordance with law. Feeling aggrieved by the said order, Muhammad Yaqoob and Muhammad Shoaib Yaqoob filed Writ Petitions No.12826/2016 and 12827/2016, respectively, which have been accepted by the learned Single Judge-in-Chamber vide consolidated order dated 21.02.2018, impugned herein, hence the above mentioned Intra-Court Appeals.

4. It has been contended by learned counsel for the appellant that impugned order is against the “law and facts” and while passing the impugned order, the learned Single Judge-in-Chamber has not appreciated the true facts and circumstances of the case, which resulted into grave miscarriage of justice, as such, the impugned order is liable to be set aside.

5. On the other hand, learned Assistant Advocate General assisted by learned counsel for respondent No.3 has supported the impugned order by contending that while passing the impugned order, the learned Single Judge-in-Chamber has applied his independent judicial mind to the facts and circumstances of the case, as such, he has rightly passed the impugned order, which is not called for any interference, therefore, the above said Intra Court Appeals may be dismissed.

6. Arguments heard and available record perused.

7. Perusal of the record shows that though allegations of committing fraud and preparing forged rent deed have been leveled

in the applications under Sections 22-A & B Cr.P.C. by the appellant against Muhammad Yaqoob and Muhammad Shoaib Yaqoob by contending that he had never executed any rent deed with Muhammad Yaqoob and Muhammad Shoaib Yaqoob after 29.09.2007 but perusal of ejectment petition, filed by the appellant on 8.4.2015, reveals that in paragraph No.2 of the said ejectment petition, the appellant has stated as under: -

“2) That petitioner served upon respondent notice dated 18.12.2013, which was duly received by respondent calling upon respondent that respondent should get fresh Rent Note executed and registered before the Rent Registrar, Lahore, as is required under Section 8 of the Punjab Rented Premises Act 2009”

Whereas in paragraph No.5 of the ejectment petition, the appellant says as under: -

“5) That in view of respondent’s conduct, the petitioner did not want respondent to continue as tenant in respect of the shop in dispute, therefore, petitioner terminated his tenancy w.e.f. 31.3.2015. It is necessary to point out here that the tenancy between petitioner and respondent is on month to month basis. By the service of notice dated 06.03.2015 the petitioner informed the respondent that his tenancy stands terminated w.e.f. 31.03.2015 and respondent was required to hand over the vacant possession of the shop in dispute to petitioner.-----”

From the perusal of above reproduced paragraphs of the ejectment petition, filed by the appellant, it is crystal clear that the appellant himself has negated his version as contained in application under Section 22-A & B Cr.P.C. that he had never executed rent deed with Muhammad Yaqoob and Muhammad Shoaib Yaqoob after 29.09.2007. Moreover, admittedly civil suit and ejectment petition between the parties are pending adjudication before the courts of competent jurisdiction wherein the questions of preparation and

genuineness of disputed rent deed and note are under consideration. Hence, in this back ground, the learned Single Judge-in-Chamber has rightly held that while passing the orders dated 16.4.2016, learned Ex. Officio Justice of peace has overlooked the above said facts and circumstances of the case in its true perspective and as such, said orders were rightly set aside through the impugned consolidated order dated 21.02.2018, the relevant portion whereof is reproduced below for ready reference: -

“5) Perusal of the record shows that in respect of preparation of forged documents civil suit as well as rent petition is pending before the court in which the preparation and genuineness of rent agreement and note are under consideration. No doubt civil and criminal litigation may proceed side by side but it will multiply litigation and also there is apprehension of two different decisions coming out of those two proceedings. This is not the intention of law to have conflicted judgments so, till the decision of civil cases criminal proceedings may not be initiated. In this background the learned Ex. Officio Justice of Peace without looking into real facts of the case issued a direction in a mechanical manner for the registration of criminal case, therefore, the same is not sustainable in the eyes of law.

In this view of the background, when a trend is common in our society to achieve results through shortcuts by adopting premature criminal remedies, the courts rightly observe restraint in the matters of issuance of direction for registration of criminal case. In this regard, guidance is solicited from ***“Younas Abbas and others versus Additional Sessions Judge, Chakwal and others”*** (PLD 2016 SC 581).

8. In the light of what has been discussed and observed above, the learned counsel for the appellant has been unable to make out a case for interference in the impugned order of learned Single

Judge-in-Chamber inasmuch as we find no illegality or perversity in the same, which is based on cogent reasons. Even otherwise, needless to observe that if impugned documents will be found forged by the Civil Court concerned, then, machinery of criminal law will automatically come into motion and in this regard, Sections 195(1)(c), 476 and 476(A) Cr.P.C. can be safely referred. Resultantly, the above mentioned Intra Court appeals being devoid of any merit are dismissed.

(Sardar Muhammad Sarfraz Dogar)

Judge

(Farooq Haider)

Judge

Naeem

Approved for reporting.

Judge

Judge